



EASTERN CARIBBEAN SUPREME COURT (VIRGIN ISLANDS) ACT

Revised Edition
showing the law as at 30 June 2013

This is a revised edition of the law, prepared by the Law Revision Commissioner under the authority of the Law Revision Act 2014.

This edition contains a consolidation of the following laws—

EASTERN CARIBBEAN SUPREME COURT (VIRGIN ISLANDS) ACT

Act 6 of 1968 .. in force 15 April 1969

Amended by Acts: 9 of 1993 .. in force 14 January 1994 (S.I. 7/1994)

15 of 2000 .. in force 31 December 2000 (S.I. 39/2000)

8 of 2002 .. in force 1 October 2002

SEE STATUTORY INSTRUMENTS BOOKLET

Page
3



VIRGIN ISLANDS

EASTERN CARIBBEAN SUPREME COURT (VIRGIN ISLANDS) ACT

Revised Edition

showing the law as at 30 June 2013

This is a revised edition of the law, prepared by the Law Revision Commissioner under the authority of the Law Revision Act 2014.

This edition contains a consolidation of the following laws—

EASTERN CARIBBEAN SUPREME COURT (VIRGIN ISLANDS) ORDINANCE

Act 6 of 1968 .. in force 15 April 1969

Amended by Acts: 9 of 1993 .. in force 14 January 1994 (S.I. 7/1994)

15 of 2000 .. in force 31 December 2000 (S.I. 39/2000)

8 of 2002 .. in force 1 October 2002

SEE STATUTORY INSTRUMENTS BOOKLET

Page

3

Published in 2014
On the authority and on behalf of the Government of The Virgin Islands
by
The Regional Law Revision Centre Inc.

For information contact—

Attorney General's Chambers
4th Floor, TTT Building
Wickhams Cay 1
P.O. Box 242
Road Town
Tortola, VG1110
British Virgin Islands

Tel: (284) 468 – 2960
Fax: (284) 468 – 2983
Email: agc@gov.vg

Printed on the authority and on behalf of the Government of The Virgin Islands
by
The Regional Law Revision Centre Inc.
P.O. Box 1626, Hannah-Waver House, Caribbean Commercial Centre,
The Valley, AI-2640, Anguilla
Authorised Printers for this Revised Edition

**EASTERN CARIBBEAN SUPREME COURT
(VIRGIN ISLANDS) ACT**

ARRANGEMENT OF SECTIONS

SECTION

1. Short title
2. Interpretation
3. Reference to Supreme Court to be deemed a reference to the High Court
4. How Supreme Court Judges are to be addressed
5. Constitution of the Court

PART I

THE HIGH COURT

6. Jurisdiction of former Supreme Court in High Court
7. Jurisdiction of High Court
8. High Court to be a Colonial Court of Admiralty 53 & 54 Vict. C. 27
9. Practice in insolvency
10. Practice in criminal proceedings
11. Practice in civil proceedings and in probate, divorce and matrimonial causes
12. Jurisdiction of single Judge
13. Law and equity to be concurrently administered
14. Equities of the plaintiff
15. Equitable defences
16. Counter-claim and third parties
17. Equities appearing incidentally
18. Defence or stay instead of injunction or prohibition
19. Common law and statutory rights and duties
20. Determination of matters completely and finally
21. Rules of equity to prevail
22. Declaratory order
23. Mode of trial
24. Granting of *mandamus*, etc.
25. Execution of instruments by order of court
26. Restrictions on institution of vexatious actions

PART II

THE COURT OF APPEAL

27. Jurisdiction vested in Court of Appeal
28. Practice and procedure in the Court of Appeal
29. Appeals from Magistrate's Courts

Civil Appeals from High Court

30. Appeals from High Court in civil matters
31. Powers of Court of Appeal on hearing appeals in civil matters
32. Additional powers of Court of Appeal on hearing appeals in civil matters
33. Power of Court of Appeal as to new trials
34. Wrong rulings as to sufficiency of stamps
35. Criminal appeals from High Court
36. Right of appeal in criminal cases
37. Determination of appeals in certain cases
38. Powers of court in special cases
39. Supplementary provisions where appeal against special verdict allowed
40. Re-vesting and restitution of property on conviction
41. Supplementary powers of Court of Appeal on hearing criminal appeals
42. Duty to admit fresh evidence
43. Admission of appellant to bail and custody when attending court
44. Computation of sentence
45. Time for appealing
46. Stay of execution
47. Judge's notes and report to be furnished on appeal
48. Legal assistance to appellant
49. Right of appellant to be present
50. Costs of appeal
51. Duties of Director of Public Prosecutions: Duties of Registrar with respect to notices of appeal, etc.
52. Shorthand notes, etc.
53. Powers which may be exercised by a Judge of the Court
54. Case stated or question of law reserved
55. Provisions of this Act applicable to proceedings under section 54
56. Prerogative of mercy
57. Criminal information
58. Appeals from orders in contempt proceedings

PART III

OFFICERS OF THE COURT

59. Present officers of Court
60. Registrar
61. Deputy Registrar
62. Taxation of costs
63. Acting Registrar
64. Hours of business
65. Bailiffs
66. Registrar, clerks and bailiffs not to advise litigants
67. Misconduct of officers of Court

PART IV

LEGAL PRACTITIONERS

- 68. Existing practitioners
- 69. Admission of legal practitioner
- 70. Enrolment of legal practitioners
- 71. Barristers practising as solicitors
- 72. Queen's Counsel
- 73. Solicitors and Commissioners for Oaths are officers of the court
- 74. Legal practitioners may be suspended or struck off roll
- 75. Unauthorised persons drawing legal documents
- 76. No legal practitioner to act as agent for unqualified person
- 77. No sharing of profit costs with person not enrolled as a legal practitioner
- 78. Law relating to solicitors, taxation and recovery of costs

PART V

WITNESSES

- 79. Disobedience of subpoena
- 80. Witness expenses in criminal proceedings
- 81. Persons present at proceedings in court may be ordered to give evidence

PART VI

MISCELLANEOUS

- 82. Sittings of the Courts
- 83. Interlocutory applications
- 84. Expenses in criminal proceedings
- 85. Remission or reduction of fines
- 86. Rules of court
- 87. Saving of procedure
- 88. Pending proceedings

**EASTERN CARIBBEAN SUPREME
COURT (VIRGIN ISLANDS) ACT**

(Acts 6 of 1968, 9 of 1993, 15 of 2000 and 8 of 2002)

Commencement

[15 April 1969]

PRELIMINARY

Short title

1. This Act may be cited as the Eastern Caribbean Supreme Court (Virgin Islands) Act. *(Amended by Act 9 of 1993)*

Interpretation

2. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say—

“action” means a civil proceeding commenced in such manner as may be prescribed by rules of court and includes a claim under the Eastern Caribbean Civil Procedure Rules, but does not include a criminal proceeding by the Crown; *(Substituted by Act 15 of 2000)*

“cause” includes any action, suit or other original proceeding between a plaintiff and defendant, and any criminal proceeding by the Crown;

“Chief Justice” means the Chief Justice of the Eastern Caribbean Supreme Court;

“Chief Registrar” means the Chief Registrar of the Supreme Court constituted under the Courts Order;

“Court” or “Supreme Court” means the Eastern Caribbean Supreme Court established by the Courts Order;

“Court of Appeal” means the Court of Appeal established by the Courts Order;

“Courts Order” means the Supreme Court Order, 1967;

“defendant” includes any person served with any writ or summons or process, or served with notice of, or entitled to attend, any proceedings;

“former British Caribbean Court of Appeal” means the British Caribbean Court of Appeal in existence immediately before the prescribed date;

“former Court of Appeal” means the Court of Appeal of the Windward Islands and Leeward Islands in existence immediately before the prescribed date;

“former Supreme Court” means the Supreme Court of the Windward Islands and Leeward Islands in existence immediately before the prescribed date;

“High Court” means the High Court of Justice established by the Courts Order;

“judgment” includes decree;

- “Justice of Appeal” means a Judge of the Court of Appeal other than the Chief Justice;
- “Master” means a Master of the Eastern Caribbean Supreme Court appointed under section 12 of the Courts Order; (*Inserted by Act 15 of 2000*)
- “matrimonial cause” means any action for divorce, nullity of marriage, judicial separation, jactitation of marriage or restitution of conjugal rights;
- “matter” includes every proceeding in court not in a cause;
- “order” includes decision and rule;
- “party” includes every person served with notice of or attending any proceeding, although not named on the record;
- “petitioner” includes every person making an application to the court, either by petition, motion or summons, otherwise than as against any defendant;
- “plaintiff” includes a claimant and every person asking any relief (otherwise than by way of counterclaim as a defendant) against any other person by any form of proceeding, whether the proceeding is by action, suit, petition, motion, summons, claim, fixed date claim or otherwise; (*Substituted by Act 15 of 2000*)
- “pleading” includes any petition or summons, and also includes the statements in writing of the claim or demand of any plaintiff, and of the defence of any defendant thereto and of the reply of the plaintiff to any counter-claim of a defendant;
- “prescribed date” means the date prescribed by the Chief Justice under section 1(2) of the Courts Order, namely, the 24th day of April, 1967;
- “proceeding” includes action, cause or matter;
- “Puisne Judge” means a Judge of the High Court, other than the Chief Justice;
- “Registrar” means the Registrar of the High Court;
- “rules of court” includes forms;
- “solicitor” means solicitor of the Supreme Court;
- “suit” includes action;
- “Virgin Islands (Courts) Order” means the Virgin Islands (Courts) Order, 1967; and
- “verdict” includes the findings of a jury and the decision of the Judge.

Reference to Supreme Court to be deemed a reference to the High Court

3. (1) Where in any Act or other law in force prior to the prescribed date reference is made to the Supreme Court in the exercise of its jurisdiction and powers, or to a Judge of the Supreme Court, that reference shall be deemed to be a reference to the High Court or to a Judge of the High Court as the case may be.

(2) Where in any Act or other law in force prior to the prescribed date reference is made to the Court of Appeal, that reference shall, unless the context otherwise requires, be deemed to be a reference to the Court of Appeal established by the Courts Order.

(3) Where in any Act or other law in force prior to the prescribed date reference is made to the British Caribbean Court of Appeal that reference shall, unless the context otherwise requires, be deemed to be a reference to the Court of Appeal.

(4) Any act done or proceedings taken in respect of any cause or matter whatsoever in the former Supreme Court or before a Judge thereof prior to the prescribed date shall have effect after the prescribed date as if it had been done or taken in the High Court or before a Judge thereof.

How Supreme Court Judges are to be addressed

4. All Judges of the Supreme Court shall be addressed in the manner customary in addressing the Judges of the former Supreme Court immediately before the prescribed date.

Constitution of the Court

5. Subject to the provisions of section 17(3) of the Courts Order and of rules of court, the Court of Appeal and the High Court for the exercise of the jurisdiction conferred upon them respectively shall be constituted in such manner as the Chief Justice may direct.

PART I

THE HIGH COURT

Jurisdiction of former Supreme Court in High Court

6. There shall be vested in the High Court all jurisdiction which was vested in the former Supreme Court by the Supreme Court Act or by any law of the Legislature of the Territory or any other law for the time being in force in the Territory and such jurisdiction shall include—

- (a) the jurisdiction which was vested in or capable of being exercised by all or any one or more of the judges of the former Supreme Court sitting in Court or Chambers or elsewhere when acting as Judges or a Judge pursuant to any Order in Council, Act, or other law for the time being in force in the Virgin Islands;
- (b) all the powers given to the former Supreme Court or to any Judge or Judges thereof by any Act, or other law for the time being in force in the Territory;
- (c) all ministerial powers, duties and authorities incidental to any and every part of that jurisdiction.

Jurisdiction of High Court

7. (1) The High Court shall have and exercise within the Territory all such jurisdiction (save and except the jurisdiction in Admiralty) and the same powers and authorities incidental to such jurisdiction as on the first day of January,

1940, were vested in the High Court of Justice in England. (*Amended by Act 15 of 2000*)

(2) Without prejudice to section 12, Masters shall exercise the authority and jurisdiction of a Judge of the High Court sitting in Chambers and such other authority and jurisdiction as may from time to time be assigned by rules of court under section 17 of the Courts Order. (*Inserted by Act 15 of 2000*)

(3) Where a Master has and exercises jurisdiction in relation to any matter, the Master shall have all the powers, rights, immunities and privileges of a Judge in relation to such matter. (*Inserted by Act 15 of 2000*)

High Court to be a Colonial Court of Admiralty 53 & 54 Vict. C.27

8. (1) The High Court is hereby declared, in pursuance of the Colonial Courts of Admiralty Act, 1890, (Imperial) to be a Colonial Court of Admiralty within the meaning of that Act.

(2) The jurisdiction of the High Court in Admiralty shall be exercised in accordance with the Colonial Courts of Admiralty Act 1890, (Imperial) and Part I of the Administration of Justice Act, 1956.

Practice in insolvency

9. The jurisdiction of the High Court in insolvency shall be exercised in accordance with the provisions of the Insolvency Act and any rules made thereunder.

Practice in criminal proceedings

10. The jurisdiction of the High Court in all criminal proceedings shall be exercised in accordance with the Criminal Procedure Act and any other law in force, in the Virgin Islands.

Practice in civil proceedings and in probate, divorce and matrimonial causes

11. The jurisdiction vested in the High Court in civil proceedings, and in probate, divorce, and matrimonial causes, shall be exercised in accordance with the provisions of this Act and any other law in operation in the Territory and rules of court, and where no special provision is therein contained such jurisdiction shall be exercised as nearly as may be in conformity with the law and practice administered for the time being in the High Court of Justice in England.

Jurisdiction of single Judge

12. Any Judge of the High Court may in accordance with rules of Court, or so far as such rules shall not provide, in accordance with the practice and procedure which shall for the time being be in force in the High Court of Justice in England, exercise, in Court or in Chambers, all or any of the jurisdiction vested in the High Court.

Law and equity to be concurrently administered

13. Subject to the express provisions of any other law, in every civil cause or matter commenced in the High Court, law and equity shall be administered by the High Court and the Court of Appeal, as the case may be, according to the provisions of the 7 sections of this Act next following.

Equities of the plaintiff

14. If a plaintiff or petitioner claims to be entitled to any equitable estate or right or to relief on an equitable ground against any deed, instrument or contract or against any right, title or claim whatsoever asserted by any defendant or respondent in the cause or matter, or to any relief founded upon a legal right which before the 1st day of November, 1875 could in England only have been given by a court of equity, the court or Judge shall give to the plaintiff or petitioner the same relief as would be given by the High Court of Justice in England in a suit or proceeding for the same or a like purpose.

Equitable defences

15. If a defendant claims to be entitled to an equitable estate or right, or to relief upon an equitable ground against any deed, instrument or contract or against any right, title or claim asserted by any plaintiff or petitioner in the cause or matter or alleges any ground of equitable defence to the claim of the plaintiff or petitioner, the court or Judge shall give to every equitable estate, right or ground of relief so claimed, and to every equitable defence such and the same effect by way of defence against the claim of the plaintiff or petitioner as the High Court of Justice in England would give if the like matters had been relied on by way of defence in any suit or proceeding instituted in that Court for the like purpose.

Counter-claim and third parties

16. (1) The court or Judge shall have power to grant to any defendant in respect of any equitable estate or right or other matter of equity and also in respect of any legal estate, right or title claimed or asserted by him or her—

- (a) all such relief against any plaintiff or petitioner as the defendant has properly claimed by his or her pleading and as the court or Judge might have granted in a suit instituted for that purpose by that defendant against the same plaintiff or petitioner; and
- (b) all such relief relating to or connected with the original subject of the cause or matter, claimed in like manner against any other person, whether already a party to the cause or matter or not, who has been duly served with notice in writing of the claim pursuant to rules of court or any order of the court as might properly have been granted against that person if he or she had been made a defendant to a cause duly instituted by the same defendant for the like purpose.

(2) Every person served with any such notice as aforesaid shall thenceforth be deemed a party to the cause or matter with the same rights in respect of his or her defence against the claim as if he or she had been duly sued in the ordinary way by the defendant.

Equities appearing incidentally

17. The court or Judge shall take notice of all equitable estates, titles and rights and all equitable duties and liabilities appearing incidentally in the course of any cause or matter in the same manner in which the High Court of Justice in England would recognise and take notice of the same in any suit or proceeding duly instituted therein.

Defence or stay instead of injunction or prohibition

18. No cause or proceeding at any time pending in the High Court or in the Court of Appeal shall be restrained by prohibition or injunction but every matter of equity on which an injunction against the prosecution of any such cause or proceeding might formerly have been obtained whether unconditionally or on any terms or conditions, may be relied on by way of defence thereto:

Provided that—

- (a) nothing in this Act shall disable the High Court or the Court of Appeal, if it thinks fit so to do, from directing a stay of proceedings in any cause or matter pending before it; and
- (b) any person, whether a party or not to any such cause or matter who would formerly have been entitled to apply to a court to restrain the prosecution thereof, or who may be entitled to enforce, by attachment or otherwise, a judgment, decree, rule or order, in contravention of which all or any part of the proceedings in the cause or matter have been taken, may apply to the High Court or to the Court of Appeal, as the case may be, by motion in a summary way, for a stay of proceedings in the cause or matter, either generally, or so far as may be necessary for the purposes of justice, and the court shall thereupon make such order as shall be just.

Common law and statutory rights and duties

19. Subject to the provisions of this Act for giving effect to equitable rights and other matters of equity, the High Court and the Court of Appeal and each Judge thereof shall recognise and give effect to all legal claims and demands and all estates, titles, rights, duties, obligations and liabilities existing by the common law or by a custom, or created by a statute, in the same manner as these matters have hitherto been recognised and given effect to.

Determination of matters completely and finally

20. The High Court and the Court of Appeal respectively in the exercise of the jurisdiction vested in them by this Act shall in every cause or matter pending before the Court grant either absolutely or on such terms and conditions as the court thinks just, all such remedies whatsoever as any of the parties thereto may appear to be entitled to in respect of any legal or equitable claim or matter so that as far as possible, all matters in controversy between the parties may be completely and finally determined, and all multiplicity of legal proceedings concerning any of these matters avoided.

Rules of equity to prevail

21. In all matters in which there was formerly, or is, any conflict or variance between the rules of equity and the rules of common law with reference to the same matter the rules of equity shall prevail.

Declaratory order

22. No action or proceeding shall be open to objection on the ground that a merely declaratory judgment decree or order is sought thereby.

Mode of trial

23. (1) Subject as hereinafter provided, any action to be tried before the High Court, may in the discretion of the court or a Judge, be ordered to be tried with or without a jury but the mode of trial shall be by a Judge without a jury unless upon the application of a party to the action, a trial with a jury is ordered.

(2) Any party to the action may within 10 days after the action has been set down for trial apply to have the action tried with a jury, and if the court or a Judge is satisfied that—

- (a) a charge of fraud against the party; or
- (b) a claim in respect of libel, slander, malicious prosecution, false imprisonment, seduction or breach of promise of marriage,

is in issue, the action shall be ordered to be tried with a jury unless the court or a Judge is of opinion that the trial thereof requires a prolonged examination of documents or accounts or any specific or local investigation which cannot conveniently be made with a jury; but, otherwise, the granting of a jury shall in every case be discretionary.

(3) The provisions of this section shall be without prejudice to the power of the High Court or a Judge to order, in accordance with rules of court, that different questions of fact arising in an action be tried by different modes of trial, and where such order is made, the provisions of this section requiring trial with a jury in certain cases shall have effect only as respects questions relating to any such charges or claim as aforesaid.

(4) For the purposes of this section the expression “action” means a civil proceeding commenced by writ or in such other manner as may be prescribed by rules of court but does not include a criminal proceeding by the Crown.

Granting of *mandamus*, etc.

24. (1) A *mandamus* or an injunction may be granted or a receiver appointed by an interlocutory order of the High Court or of a Judge thereof in all cases in which it appears to the Court or Judge to be just or convenient that the order should be made and any such order may be made either unconditionally or upon such terms and conditions as the court or Judge thinks just.

(2) If an injunction is prayed for, either before or at, or after the hearing of a cause or matter to prevent a threatened or apprehended waste or trespass, the injunction may be granted, if the High Court or a Judge of the High Court thinks fit—

- (a) whether the person against whom the injunction is sought—
 - (i) is or is not in possession under a claim or title or otherwise; or
 - (ii) if out of possession, does or does not claim a right to do the act sought to be restrained under any colour of title; and
- (b) whether the estates claimed by both or by either of the parties are legal or equitable.

Execution of instruments by order of court

25. Where a person neglects or refuses to comply with a judgment or order directing him or her to execute a conveyance, contract or other document, or to endorse a negotiable instrument, the High Court may, on such terms and conditions, if any, as may be just, order that the conveyance, contract or other document shall be executed or that the negotiable instrument shall be endorsed by a person nominated by the High Court for that purpose and a conveyance, contract, document or instrument so executed or endorsed shall operate and be for all purposes available as if it had been executed or endorsed by the persons originally directed to execute or endorse it.

Restrictions on institution of vexatious actions

26. (1) If, on an application made by the Attorney General under this section to the High Court, the High Court is satisfied that any person has habitually and persistently and without reasonable ground instituted legal proceedings whether in the Court of Appeal, the High Court, the Court of Summary Jurisdiction, or in a Magistrate's Court; and whether against the same person or against different persons, the High Court may, after hearing the person or giving him or her an opportunity of being heard, order that no legal proceedings shall without leave of the High Court or a Judge thereof be instituted by him or her in any court, and such leave shall not be given unless the High Court is satisfied that the proceedings are not an abuse of the process of the court and that there is *prima facie* ground for the proceedings.

(2) If the person against whom an order is sought under this section is unable on account of poverty to retain counsel, the High Court shall assign counsel to him or her.

(3) A copy of an order under this section shall be published in the *Gazette*.

PART II

THE COURT OF APPEAL

Jurisdiction of the Court of Appeal

Jurisdiction vested in Court of Appeal

27. Subject to the provisions of this Act, there shall be vested in the Court of Appeal—

- (a) the jurisdiction and powers which at the prescribed date were vested in the former Court of Appeal;
- (b) the jurisdiction and powers which at the prescribed date were vested in the British Caribbean Court of Appeal;
- (c) such other jurisdiction and powers as may be conferred upon it by this Act or any other law.

Practice and procedure in the Court of Appeal

28. The Jurisdiction of the Court of Appeal so far as it concerns practice and procedure in relation to appeals from the High Court shall be exercised in accordance with the provisions of this Act and rules of court and where no special provisions are contained in this Act or rules of court such jurisdiction so far as concerns practice and procedure in relation to appeals from the High Court shall be exercised as nearly as may be in conformity with the law and practice for the time being in force in England—

- (a) in relation to criminal matters, in the Court of Appeal (Criminal Division);
- (b) in relation to civil matters in the Court of Appeal (Civil Division).

Appeals from Magistrate's Courts

29. (1) Subject to the provisions of the Magistrate's Code of Procedure Act or any other enactment regulating appeals from Magistrates' Courts and to rules of court, an appeal shall lie to the Court of Appeal from any judgment, decree, sentence or order of a magistrate in all proceedings.

(2) The time within which notice of appeal may be given or any bond or security entered into or grounds of appeal filed in relation to appeals under this section may be extended at any time by the Court.

Civil Appeals from High Court

Appeals from High Court in civil matters

30. (1) Subject to the provisions of this Act or any other enactment—

- (a) the Court of Appeal shall have jurisdiction to hear and determine any matter in any civil proceedings upon a case stated or upon a question of law reserved by the High Court or by a Judge thereof

pursuant to any power conferred in that behalf by a law in operation in the Territory;

- (b) an appeal shall lie to the Court of Appeal, and the Court of Appeal shall have jurisdiction to hear and determine the appeal, from any judgment or order of the High Court and for the purposes of, and incidental to, the hearing and determination of any appeal, and the amendment, execution and enforcement of any judgment or order made thereon, the Court of Appeal shall have all the powers, authority and jurisdiction of the High Court.

(2) No appeal shall lie—

- (a) from an order made in a criminal cause or matter except as provided by this Act;
- (b) from an order allowing an extension of time for appealing from a judgment or order;
- (c) from an order of a Judge giving unconditional leave to defend an action;
- (d) from a decision of the High Court or of any Judge thereof where it is provided by any law that such decision is to be final;
- (e) from an order absolute for the dissolution or nullity of a marriage in favour of any party who, having had time and opportunity to appeal from the *decree nisi* on which the order was founded, has not appealed from that *decree*, except upon some point which would not have been available to the party on the appeal.

(3) No appeal shall lie except by leave of the Judge making the order or of the Court of Appeal from—

- (a) an order made with the consent of the parties;
- (b) an order as to costs only where such costs are left to the discretion of the court.

(4) No appeal shall lie without the leave of the Judge or of the Court of Appeal from an interlocutory order or interlocutory judgment made or given by a Judge except in the following cases—

- (a) where the liberty of the subject or the custody of infants is concerned;
- (b) where an injunction or the appointment of a receiver is granted or refused;
- (c) in the case of a *decree nisi* in a matrimonial cause or a judgment or order in an Admiralty action determining liability;
- (d) in such other cases, to be prescribed by rules of court, as may in the opinion of the authority having power to make such rules of court be of the nature of final decisions.

(5) Where an appeal has been brought under the provisions of this section and is pending in the Court of Appeal a Judge of the High Court may hear and determine such applications incidental to the appeal and not involving the

decision thereof as may be prescribed by rules of court but an order made on any such application may be discharged or varied by the Court of Appeal.

(6) For the purposes of this section, “Judge” means Judge of the High Court and, where the context so admits, includes a Master. (*Substituted by Act 15 of 2000*)

Powers of Court of Appeal on hearing appeals in civil matters

31. (1) On the hearing of an appeal from an order of the High Court in any civil cause or matter, the Court of Appeal shall have power to—

- (a) confirm, vary, amend or set aside the order or make such order as the High Court might have made, or to make any order which ought to have been made, and to make such further or other order as the nature of the case may require;
- (b) draw inferences of fact;
- (c) direct the High Court to enquire into and certify its findings on any question which the Court of Appeal thinks fit to be determined before final judgment in the appeal.

(2) The powers of the Court of Appeal under the foregoing provisions of this section may be exercised notwithstanding that no notice of appeal or respondent’s notice has been given—

- (a) in respect of any particular part of the decision of the High Court;
- (b) by any particular party to the proceedings in that Court; or
- (c) that no ground for allowing the appeal or for affirming or varying the decision of that Court is specified in the notice,

and the Court of Appeal may make any order, on such terms as the Court of Appeal thinks just, to ensure the determination on the merits of the real question in controversy between the parties.

(3) The powers of the Court of Appeal in respect of an appeal shall not be restricted by reason of an interlocutory order from which there has been no appeal.

(4) The Court of Appeal may make such order as to the whole or any part of the costs of an appeal as may be just, and may, in special circumstances, order that such security shall be given for the costs of an appeal as may be just.

Additional powers of Court of Appeal on hearing appeals in civil matters

32. For the purposes of an appeal in any civil cause or matter, the Court of Appeal may, if they think it necessary or expedient in the interest of justice—

- (a) order the production of any document, exhibit or other thing connected with the proceedings, the production of which appears to them necessary for the determination of the case, provided that no person shall be compelled to produce under any such order a writing or other document which he or she could not have been compelled to produce at the hearing or trial;

- (b) if they think fit, order any witnesses who would have been compellable witnesses at the trial to attend and be examined before the Court of Appeal, whether they were or were not called at the trial, or order the examination of any such witnesses to be conducted in the manner provided by rules of court before any Judge of the Court of Appeal or before any officer of the Court of Appeal or other person appointed by the Court for the purpose, and at any place, and allow the admission of any deposition so taken as evidence before the Court;
- (c) if they think fit receive the evidence, if tendered, of any witness (including the appellant) who is a competent but not a compellable witness, and, if a party makes application for the purpose of the husband or wife of that party, in cases where the evidence of the husband or wife could not have been given at the trial except on such application;
- (d) where any question arising in the appeal involves prolonged examination of documents or accounts, or any scientific or local investigation, which cannot, in the opinion of the Court, conveniently be conducted before the Court of Appeal, order the reference of the question in manner provided by rules of court for inquiry and report to a special commissioner appointed by the Court, and act upon the report of any such commissioner so far as they think fit to adopt it;
- (e) appoint any person with special expert knowledge to act as assessor in an advisory capacity to the court in any case where it appears to the Court that such special knowledge is required for the proper determination of the case; and
- (f) where the case was not tried by the High Court, remit the case to the court of trial for further hearing, with such instructions as regards the taking of further evidence or otherwise as appear to them necessary.

Power of Court of Appeal as to new trials

33. (1) Subject to the provisions of this section, on the hearing of an appeal in any civil cause or matter the Court of Appeal shall, if it appears to the Court of Appeal that a new trial should be held, have power to set aside the order appealed against and order that a new trial be held.

(2) On the hearing of an appeal in any civil cause or matter, the following provisions shall apply—

- (a) a new trial shall not be ordered on the ground of misdirection, or of the improper admission or rejection of evidence unless in the opinion of the Court of Appeal some substantial wrong or miscarriage has been thereby occasioned;
- (b) a new trial may be ordered on any question without interfering with the finding or decision upon any other question; and if it appears to the Court of Appeal that any such wrong or miscarriage as is mentioned in paragraph (a) affects part only of the matter in controversy or one or some only of the parties, the

Court may order a new trial as to that part only, or as to that party or those parties only, and give final judgment as to the remainder.

(3) On the hearing of an appeal from an order made in any action tried with a jury the following provisions shall apply—

- (a) the Court of Appeal may, if they think fit, make any such order as could be made in pursuance of an application for a new trial or to set aside a verdict, finding or judgment of the court below;
- (b) a new trial shall not be ordered because the verdict of the jury was not taken upon a question which the Judge at the trial was not asked to leave to them, unless in the opinion of the Court of Appeal some substantial wrong or miscarriage has been thereby occasioned;
- (c) in any case where the Court has power to order a new trial on the ground that the damages awarded by a jury are excessive or inadequate, the Court may, *in lieu* of ordering a new trial—
 - (i) with the consent of all parties concerned, substitute for the sum awarded by the jury such sum as appears to the Court to be proper;
 - (ii) with the consent of the party entitled to receive or liable to pay the damages, as the case may be, reduce or increase the sum awarded by the jury by such amount as appears to the Court to be proper in respect of any distinct head of damages erroneously included in or excluded from the sum so awarded; but except as aforesaid the Court of Appeal shall not have power to reduce or increase damages awarded by a jury.

Wrong rulings as to sufficiency of stamps

34. The Court of Appeal shall not grant a new trial or reverse any judgment by reason of the ruling of any court that the stamp upon any document is sufficient or that the document does not require a stamp.

Criminal Appeals from High Court

Criminal appeals from High Court

35. (1) In sections 35 to 57 unless the context otherwise requires—

“appeal” means an appeal by a person convicted upon indictment;

“appellant” means the person making such appeal;

“sentence” includes any order of the Court made on conviction with reference to the person convicted or the persons’ spouse or their children, and any recommendation of the convicting court as to the making of a deportation order, or of a restriction order, or of an expulsion order in the case of a person convicted; and

“the power of the Court of Appeal to pass a sentence” includes a power to make any such order or recommendation as the convicting court might have made and a recommendation so made by the Court of Appeal shall have the same effect for the purposes of any law under which such recommendation is permitted to be made, as the certificate and recommendation of the convicting court.

(2) In this section and in sections 36, 37, 45, 47, 53(1), 54(1), 56(2) and 57 references to a person being convicted shall include references to his or her being the subject of a special verdict under section 54 of the Criminal Procedure Act.

Right of appeal in criminal cases

36. A person convicted on indictment may appeal under this Act to the Court of Appeal—

- (a) against his or her conviction on any ground of appeal which involves a question of law alone;
- (b) with the leave of the Court of Appeal or upon the certificate of the Judge who tried him or her that it is a fit case for appeal against his or her conviction on any ground of appeal which involves a question of fact alone, or a question of mixed law and fact, or any other ground which appears to the court or Judge to be a sufficient ground of appeal; and
- (c) with the leave of the Court of Appeal against the sentence passed on his or her conviction, unless the sentence is one fixed by law.

Determination of appeals in certain cases

37. (1) The Court of Appeal on any such appeal against conviction shall, subject as hereinafter provided, allow the appeal if it thinks that the verdict of the jury should be set aside on the ground that it is unsafe or unsatisfactory or that the judgment of the court before whom the appellant was convicted should be set aside on the ground of a wrong decision of any question of law or that there was a material irregularity in the course of the trial and in any other case shall dismiss the appeal:

Provided that the Court may, notwithstanding that it is of the opinion that the point raised in the appeal might be decided in favour of the appellant, dismiss the appeal if it considers that no miscarriage of justice has actually occurred.

(2) Subject to the special provisions of this Act, the Court of Appeal shall, if they allow an appeal against conviction, either quash the conviction, and direct a judgment and verdict of acquittal to be entered, or, if the interests of justice so require, order a new trial.

(3) Where—

- (a) an appeal against a special verdict under section 54 of the Criminal Procedure Act would fall to be allowed; and
- (b) none of the grounds for allowing it relates to the question of the insanity of the accused,

the Court of Appeal may dismiss the appeal if it's of opinion that, but for the insanity of the accused the proper verdict would have been that he or she was guilty of an offence other than the offence charged.

- (4) (a) An appellant who is to be retried for an offence in pursuance of an order under this section shall be tried upon a fresh indictment preferred by the direction of the Court of Appeal;
- (b) The Court of Appeal may, upon ordering a retrial, make such orders as appear to the court to be necessary or expedient for the custody or admission to bail of the appellant pending the retrial, or for the retention pending the retrial of any property, or money forfeited, restored or paid by virtue of the original conviction or any order made on that conviction;
- (c) On a retrial ordered under this section, section 185 of the Magistrate's Code of Procedure Act (reading of depositions) shall not apply to the depositions of any person who gave evidence at the original trial; but a transcript of the shorthand notes or where there are no shorthand notes, of the Judge's notes, of the evidence given by any witness at the original trial may, with the leave of the Judge, be read as evidence—
 - (i) by agreement between the prosecution and the defence;
 - (ii) if the Judge is satisfied that the witness is dead or unfit to give evidence or to attend for that purpose, or is absent from the Territory, or that all reasonable efforts to find him or her or to secure his or her attendance have been made without success,

and in either case may be so read without further proof if verified in accordance with rules of court.

(5) On an appeal against sentence the Court of Appeal shall, if they think that a different sentence should have been passed, quash the sentence passed at the trial, and pass such other sentence warranted in law by the verdict whether more or less severe, in substitution therefor, as they think ought to have been passed, and in any other case shall dismiss the appeal.

Powers of court in special cases

38. (1) If it appears to the Court of Appeal that an appellant, though not properly convicted on some count or part of the indictment, has been properly convicted on some other count or part of the indictment, the Court of Appeal may either affirm the sentence passed on the appellant at the trial, or pass such sentence in substitution therefor as they think proper, and as may be warranted in law by the verdict on the count or part of the indictment on which the Court of Appeal considers that the appellant has been properly convicted.

(2) Where an appellant has been convicted of an offence and the jury could on the indictment have found him or her guilty of some other offence, and on the finding of the jury it appears to the Court of Appeal that the jury must have been satisfied of facts which proved him or her guilty of that other offence, the Court of Appeal may, instead of allowing or dismissing the appeal, substitute for the verdict found by the jury a verdict of guilty of that other offence, and pass

such sentence in substitution for the sentence passed at the trial as may be warranted in law for that other offence, not being a sentence of greater severity.

(3) Where on the conviction of the appellant the jury have found a special verdict, and the Court of Appeal considers that a wrong conclusion has been arrived at by the court before which the appellant has been convicted on the effect of that verdict, the Court of Appeal may, instead of allowing the appeal, order such conclusion to be recorded as appears to the Court of Appeal to be in law required by the verdict, and pass such sentence in substitution for the sentence passed at the trial as may be warranted in law.

(4) Where on any appeal it appears to the Court of Appeal that the proper verdict would have been a special verdict under section 54 of the Criminal Procedure Act, the court may quash the sentence passed at the trial and order the appellant to be kept in custody as a prisoner of unsound mind under the provisions of the said Act in the same manner as if a special verdict had been found by the jury under that Act.

Supplementary provisions where appeal against special verdict allowed

39. (1) Where in accordance with section 37(1) an appeal against a special verdict under section 54 of the Criminal Procedure Act is allowed—

- (a) if the ground, or one of the grounds for allowing the appeal is that the finding of the jury as to the insanity of the accused ought not to stand and the Court of Appeal is of opinion that the proper verdict would have been that he or she was guilty of an offence (whether the offence charged or any other offence of which the jury could have found him or her guilty), the court shall substitute for the special verdict a verdict of guilty of that offence, and shall have the like powers punishing or otherwise dealing with the accused and other powers as the court before which he or she was tried would have had if the jury had come to the substituted verdict;
- (b) in any other case, the Court of Appeal shall substitute for the verdict of the jury a verdict of acquittal:

Provided that where the offence mentioned in paragraph (a) is one for which the sentence is fixed by law, the sentence shall (whatever the circumstances) be one of imprisonment for life.

(3) The term of any sentence passed by the Court of Appeal in the exercise of the powers conferred by subsection 1(a) shall, unless the Court otherwise directs, begin to run from the time it would have begun to run if passed in the proceedings in the court before which the accused was tried.

Re-vesting and restitution of property on conviction

40. (1) The operation of an order for the restitution of property to any person made on a conviction on indictment and the operation in case of any such conviction of the provisions of section 232 of the Criminal Code as to the restitution of the property in goods to the owner thereof, shall (unless the court before whom the conviction takes place directs to the contrary in any case in which, in its opinion, the title to the property is not in dispute) be suspended—

- (a) in any case until the expiration of 14 days after the date of conviction; and
- (b) in cases where notice of appeal or leave to appeal is given within 14 days after the date of conviction, until the determination of the appeal,

and in cases where the operation of any such order, or the operation of the said provisions, is suspended until the determination of the appeal, the order or provisions, as the case may be, shall not take effect as to the property in question if the conviction is quashed on appeal.

(2) Provision may be made by rules of court for securing the safe custody of the property pending the suspension of the operation of any such order or of the said provisions.

(3) The Court of Appeal may by order annul or vary an order made on a trial for the restitution of property to any person, although the conviction is not quashed; and the order if annulled shall not take effect, and, if varied, shall take effect as so varied.

Supplementary powers of Court of Appeal on hearing criminal appeals

41. (1) For the purposes of an appeal in any criminal cause or matter, the Court of Appeal may, if they think it necessary or expedient in the interest of justice—

- (a) exercise any or all of the powers conferred by section 32 on the Court of Appeal (other than those contained in paragraph (f) thereof) but in the application of section 32 to an appeal in any criminal cause or matter, for the words “a party” and “that party” in paragraph (c) thereof, there shall be substituted the words “the appellant”;
- (b) exercise in relation to the proceedings of the Court any other powers which may for the time being be exercised by the Court of Appeal on appeals in civil matters; and
- (c) issue any warrant necessary for enforcing an order or sentence of the Court of Appeal:

Provided that—

- (i) In no case shall a sentence be increased by reason of or in consideration of evidence that was not given at the trial.
- (ii) Whenever the Court of Appeal receives further evidence it shall make such order as will secure an opportunity to the parties to the proceedings to examine every witness whose evidence is taken.

Duty to admit fresh evidence

42. Without prejudice to the generality of the preceding section of this Act (supplementary powers), where evidence is tendered to the Court of Appeal under that section, the Court of Appeal shall, unless they are satisfied that the

evidence, if received, would not afford any ground for allowing the appeal, exercise its power under that section of receiving it if—

- (a) it appears to them that the evidence is likely to be credible and would have been admissible at the trial on an issue which is the subject of the appeal; and
- (b) they are satisfied that it was not adduced at the trial, but that there is a reasonable explanation for the failure so to adduce it.

Admission of appellant to bail and custody when attending court

43. (1) An appellant who is not admitted to bail shall, pending the determination of his or her appeal, be treated in like manner as prisoners awaiting trial.

(2) The Court of Appeal may, if they think fit, on the application of the appellant, admit the appellant to bail pending the determination of his or her appeal.

Computation of sentence

44. (1) The time during which an appellant, pending the determination of his or her appeal, is admitted to bail, and subject to any directions which the Court of Appeal may give to the contrary on any appeal, the time during which the appellant, if in custody, is specially treated as an appellant, shall not count as part of any term of imprisonment under his or her sentence.

(2) In the case of an appeal under this Act, any imprisonment under the sentence of the appellant, whether it is the sentence passed by the Court of trial or the sentence passed by the Court of Appeal, shall, subject to any directions which may be given by the Court of Appeal be deemed to be resumed or to begin to run, as the case requires, if the appellant is in custody, as from the day on which the appeal is determined, and, if he or she is not in custody, as from the day on which he or she is received into prison under the sentence.

(3) Where the Court of Appeal gives a direction under this section, it shall state its reasons for giving the direction.

(4) Provision shall be made by prison rules for the manner in which an appellant, when in custody, is to be brought to any place at which he or she is entitled to be present for the purposes of this Act, or to any place to which the Court of Appeal or any Judge thereof may order him or her to be taken for the purposes of any proceedings of that Court, and for the manner in which he or she is to be kept in custody while absent from prison for such purpose; and an appellant whilst in custody in accordance with those rules shall be deemed to be in legal custody.

Time for appealing

45. (1) Where a person convicted desires to appeal under this Act to the Court of Appeal or to obtain the leave of the Court of Appeal, he or she shall give notice of appeal or notice of his or her application for leave to appeal in such manner as may be directed by rules of court within 14 days of the date of conviction.

(2) Except in the case of a conviction involving sentence of death, the time within which notice of an application for leave to appeal may be given, may be extended at any time by the Court of Appeal.

(3) For the purposes of this section, the date of conviction shall, where the court has adjourned the trial of an indictment after conviction, be the date on which the court sentences or otherwise deals with the offender.

Stay of execution

46. In the case of a conviction involving sentence of death or corporal punishment—

- (a) the sentence shall not in any case be executed until the expiration of the time within which notice of appeal or of an application for leave may be given under the preceding section; and
- (b) if notice is so given, the appeal or application shall be heard and determined with as much expedition as practicable, and the sentence shall not be executed until after the determination of the appeal, or, in cases where an application for leave to appeal is finally refused, of the application.

Judge's notes and report to be furnished on appeal

47. The Judge before whom a person is convicted shall, in the case of an appeal under this Act against the conviction or against the sentence or in the case of application for leave to appeal under this Act, furnish to the Registrar in accordance with rules of court, his or her notes of the trial; and shall also furnish to the Registrar in accordance with rules of court a report giving his or her opinion on the case or on any point arising in the case.

Legal assistance to appellant

48. The Court of Appeal may at any time assign to an appellant who has been sentenced to death a solicitor and counsel, or counsel only, in any appeal or proceedings preliminary or incidental to an appeal in which, in the opinion of the Court, it appears desirable in the interests of justice that the appellant should have legal aid, and that he or she has not sufficient means to enable him or her to obtain that aid.

Right of appellant to be present

49. (1) An appellant, notwithstanding that the appellant is in custody, shall be entitled to be present, if the appellant desires it, on the hearing of his or her appeal, except where the appeal is on some ground involving a question of law alone, but in that case, and on an application for leave to appeal and on any proceedings preliminary or incidental to an appeal, shall not be entitled to be present, except where rules of court provide that he or she shall have the right to be present, or where the Court gives him or her leave to be present.

(2) An appellant who does not appear at the hearing of his or her appeal by counsel, may present his or her case and argument in writing, and any case or argument so presented shall be considered by the Court.

(3) The power of the Court of Appeal to pass a sentence under this Act may be exercised notwithstanding that the appellant is for any reason not present.

(4) The reference in subsection (1) to an appellant being in custody shall not include a reference to his or her being in custody in consequence of a special verdict under section 54 of the Criminal Procedure Act.

Costs of appeal

50. (1) On the hearing and determination of a criminal appeal from the High Court or any proceedings preliminary or incidental thereto under this Act, no costs shall be allowed on either side and no appellant shall be required to give security for the costs of his or her appeal or for the costs of his or her application for leave to appeal.

(2) The expenses—

- (a) of a solicitor or counsel assigned to an appellant under this Act;
- (b) a witness attending on the order of the Court of Appeal or examined in proceedings incidental to the appeal;
- (c) of the appearance of an appellant on the hearing of his or her appeal or on any proceedings preliminary or incidental to the appeal;
- (d) of and incidental to any examination of witnesses conducted by any person appointed by the Court for the purpose;
- (e) of any reference of a question to a special commissioner appointed by the Court;
- (f) or of any person appointed as assessor to the Court,

shall be defrayed out of monies provided by the Legislature up to an amount allowed by the Court, but subject to any rules of court as to rates and scales of payment.

Duties of Director of Public Prosecutions: Duties of Registrar with respect to notices of appeal, etc.

51. (1) It shall be the duty of the Director of Public Prosecutions by himself, herself or by other counsel designated by him or her to appear for the Crown on every criminal appeal to the Court of Appeal under this Act, except so far as a private prosecutor in the case of a private prosecution undertakes the defence of the appeal.

(2) Provisions shall be made by rules of court for the transmission to the Director of Prosecutions of all such documents, exhibits, and other things connected with the proceedings, as he or she may require for the purpose of his or her duties under this section.

(3) The Registrar shall take all necessary steps for obtaining a hearing under this Act of any appeals or applications, notice of which is given to him or her under this Act, and shall obtain and lay before the Court of Appeal in proper form all documents, exhibits, and other things relating to the proceedings in the

court before which the appellant or applicant was tried, which appear necessary for the proper determination of the appeal or application.

(4) If it appears to the Registrar that any notice of an appeal against a conviction, purporting to be on a ground of appeal which involves a question of law alone, does not show any substantial ground of appeal, the Registrar may refer the appeal to the Court of Appeal for summary determination, and where the case is so referred, the Court of Appeal may, if they consider that the appeal is frivolous or vexatious, and can be determined without adjourning the same for a full hearing, dismiss the appeal summarily, without calling on any persons to attend the hearing or to appear for the Crown thereon.

(5) Any documents, exhibits, or other things connected with the proceedings on the trial of any person on indictment, who, if convicted, is entitled or may be authorised to appeal under this Act, shall be kept in the custody of the court of trial in accordance with rules of court made for the purpose, for such time as may be provided by the rules, and subject to such powers as may be given by the rules for the conditional re-release of any such documents, exhibits, or things from that custody.

(6) The Registrar shall furnish the necessary forms and instructions in relation to notices of appeal or notices of application under this Act to any person who demands the same, and to such officers or persons as the Registrar thinks fit, and the Superintendent of Prisons shall cause those forms and instructions to be placed at the disposal of prisoners desiring to appeal or to make an application under this Act, and shall cause any such notice given by a prisoner in his or her custody to be forwarded on behalf of the prisoner to the Registrar.

(7) The Registrar shall report to the Court of Appeal or a Judge thereof any case in which it appears to him or her that, although no application has been made for the purpose, a solicitor and counsel, or counsel only, ought to be assigned to an appellant under the powers given to that Court by this Act.

(8) In this section and in the next following section the expression "Registrar" includes the Chief Registrar and Deputy Registrar of the Court of Appeal.

Shorthand notes, etc.

52. (1) Records, whether in writing by shorthand notes or otherwise, by recordings in electro magnetic tape or by other means as may be prescribed by rules of court, shall be taken of the proceedings at the trial of any person on indictment who, if convicted, is entitled or may be authorised to appeal under this Act; and on any appeal or application for leave to appeal, a transcript of the records or any part thereof shall be made if the Registrar so directs, and furnished to the Registrar for the use of the Court of Appeal or any Judge thereof.

(2) A transcript of the records taken under subsection (1) shall be furnished to any party interested, upon payment of such charges as may be fixed by rules of court.

(3) Rules of court may also make provisions as necessary for securing the accuracy of the records to be taken and for the verification of the transcript.

Powers which may be exercised by a Judge of the Court

53. The powers of the Court of Appeal under this Act—

- (a) to give leave to appeal;
- (b) to extend the time within which notice of appeal or of an application for leave to appeal may be given;
- (c) to assign legal aid to an appellant;
- (d) to allow the appellant to be present at any proceedings in cases where he or she is not entitled to be present without leave; or
- (e) to admit an appellant to bail,

may be exercised by any Judge of the Court of Appeal in the same manner and subject to the same provisions as they may be exercised by the Court of Appeal, but, if the Judge refuses an application on the part of the appellant to exercise any such power in his or her favour, the appellant shall be entitled to have the application determined by the Court as duly constituted for the hearing and determination of appeals under this Act.

Case stated or question of law reserved

54. (1) Where a person is convicted on indictment, the trial Judge may state a case or reserve a question of law for the consideration of the Court of Appeal and the Court of Appeal shall consider and determine such case stated or question of law reserved and may either—

- (a) confirm the judgment given upon the indictment; or
- (b) order that the judgment be set aside and quash the conviction and direct a judgment and verdict of acquittal to be entered; or
- (c) order that the judgment be set aside, and give instead the judgment which ought to have been given at the trial; or
- (d) require the Judge by whom such case has been stated or question has been reserved to amend such statement or question when specially entered on the record; or
- (e) make such other order as justice requires.

(2) The Court of Appeal, when a case is stated or a question of law reserved for their opinion shall have power, if they think fit, to cause the case or certificate to be sent back for amendment and thereupon the same shall be amended accordingly.

Provisions of this Act applicable to proceedings under section 54

55. Where a case is stated or question of law reserved for the consideration of the Court of Appeal, the provisions of sections 43, 44, 46, 48, 49, 50, subsections (1), (2), (3), (5) and (7) of sections 51, 52 and section 53 shall apply to such proceedings in like manner as to an appeal.

Prerogative of mercy

56. (1) Nothing in this Act shall affect the prerogative of mercy.

(2) The Governor on the consideration of a petition for the exercise of Her Majesty's mercy having reference to the conviction of a person on indictment or to the sentence, passed on a person so convicted, may at any time—

- (a) refer the whole case to the Court of Appeal, and the case shall then be heard and determined by the Court as in the case of an appeal by a person convicted; or
- (b) if he or she desires the assistance of the Court of Appeal on a point arising in the case with a view to the determination of the petition, refer that point to the Court for their opinion thereon, and the Court shall consider the point so referred and furnish the Governor with its opinion thereon accordingly.

Criminal information

57. This Act shall apply in the case of convictions on criminal informations as it applies in the case of conviction on indictments.

Appeals in Contempt Proceedings

Appeals from orders in contempt proceedings

58. (1) An appeal shall lie to the Court of Appeal from any order made by the High Court or by a Judge of the High Court or of the Court of Appeal or by a Magistrate imposing imprisonment or a fine for contempt of court.

(2) A person ordered by any such Court, Judge or Magistrate to be imprisoned or to pay a fine for contempt of court, may at the time of such order or within 2 days thereafter give notice to the Court, Judge or Magistrate making the order of his or her intention to appeal to the Court of Appeal and may, within 2 days after giving the notice, enter into a recognisance with surety to the satisfaction of the Registrar of the High Court or of the Court of Appeal or clerk of the Court, as the case may be, in a sum not exceeding \$100 to prosecute the appeal, and the giving of the notice and entering into the recognisance shall operate as a stay of the order.

(3) On the person entering into recognisance, the Judge or Magistrate making the order shall within 21 days thereafter transmit to the Registrar a statement of the cause of the committal or fine and upon such statement being received the Registrar shall within 4 days thereafter issue a summons, free of cost, calling on the appellant to appear before the Court of Appeal within a reasonable time thereafter and on a day to be named therein and the Court of Appeal shall hear and determine the appeal and either confirm, vary or quash the order and the Court of Appeal may from time to time return the proceedings to the Judge or Magistrate who made the order for further information.

(4) When the Court of Appeal confirms or varies the order the Judge or Magistrate who made the order shall proceed to carry out and enforce his or her order as confirmed or varied in the same manner as if there had been no appeal against the same.

PART III

OFFICERS OF THE COURT

Present officers of Court

59. Except as in this Act otherwise expressly provided, every person who at the date of commencement of this Act holds the office of Registrar, or Bailiff, shall continue to hold his or her office on the terms on which he or she now holds it, and nothing in this Act contained shall affect the validity and effect of any bond previously given by any of the said officers.

Registrar

60. (1) The Chief Registrar shall have and exercise in relation to the Territory such functions as may be conferred upon him or her by this Act or any other law or by rules of court.

(2) Without prejudice to the generality of the provisions of this section, the Chief Registrar shall take all necessary steps for obtaining a hearing under this Act of any appeals or applications, and shall obtain and lay before the Court of Appeal in proper form all documents, exhibits and other things relating to the proceedings in the Court before which the case, or the appellant or applicant, was tried which appear necessary for the proper determination of the appeal or application.

(3) The Registrar shall have such power and authority and perform such duties as shall be necessary for the due conduct and discharge of the business of the High Court and the Court of Appeal as the Chief Justice or other Judge authorised by the Chief Justice in that behalf shall direct. The Registrar shall be subject to the general or special directions of the Chief Registrar and shall assist him or her in the performance of his or her duties.

(4) The Registrar shall be *ex officio* a Deputy Registrar of the Court of Appeal.

(5) The Registrar shall be *ex officio* Admiralty Marshal.

(6) The Registrar shall be *ex officio* Provost Marshal.

(7) The Registrar shall have custody of the seals of the High Court and of the Court of Appeal (Virgin Islands sub-Registry) and of all records, documents and papers thereof.

Deputy Registrar

61. The powers and duties of the Registrar may be exercised by the Deputy Registrar acting under and in accordance with the general or special instructions of the Registrar. (*Inserted by Act 9 of 1993*)

Taxation of costs

62. (1) The Chief Registrar, and in his or her absence the Registrar, shall be the Taxing Master for the Court. He or she shall tax all bills of costs in accordance with the scales for the time being in force.

(2) Every taxation of costs shall be subject to rules of court and be subject to review by a Judge in chambers.

Acting Registrar

63. Whenever the Registrar is on leave or ill or otherwise unable to perform the duties of his or her office, the Governor, acting after consultation with the Chief Justice, may appoint a fit and proper person to act, during pleasure, for the Registrar, and, until an appointment is made, the Deputy Registrar shall act as Registrar unless the Deputy Registrar is on leave, ill or otherwise unable to perform the duties of Registrar, in which case, the most senior Clerk officiating in the Registry shall act as Registrar; the person who acts as Registrar shall have all the powers, and be charged with all the duties of the Registrar. *(Substituted by Act 9 of 1993)*

Hours of business

64. (1) The office of the Registrar and Provost Marshal shall be kept open for the transaction of business between the hours of 8:30 a.m. and 4:30 p.m. on Mondays to Fridays, except Christmas Day, Good Friday and public holidays. *(Substituted by Act 8 of 2002)*

(2) Notwithstanding subsection (1) the Judge, by whom any matter is being heard, may direct any paid officer of the Court to transact at any time any business which, in the opinion of the Judge, is necessary or convenient, to facilitate the hearing and determination of the matter in question, or to carry into effect any order made in connection therewith. *(Amended by Act 8 of 2002)*

Bailiffs

65. (1) There shall be at least one bailiff for the High Court but the Governor may sanction the appointment of an additional bailiff, or of additional bailiffs.

(2) Every bailiff shall be appointed by a Judge by a commission under his or her hand and the seal of the High Court, and shall receive such salary as may be provided by the Legislature.

(3) Every bailiff shall be under the control of the Registrar and may, on cause shown, be dismissed from his or her office by a Judge.

(4) Every bailiff shall, in addition to his or her duties as bailiff also perform, if required, the duties of Crier of the High Court and of the Court of Appeal.

(5) Notwithstanding anything hereinbefore contained, a Judge of the High Court, may by writing under his or her hand and the seal of the High Court, appoint a temporary bailiff to serve, or execute such process or processes of the High Court as may be specified in the appointment.

Registrar, clerks and bailiffs not to advise litigants

66. No Registrar, clerk to a Registrar or bailiff shall act as attorney, agent or adviser of a plaintiff, defendant or other suitor, or party in or to any proceeding in a Court in the Territory, or give advice in any law matter, or act as conveyancer, or notary public, or accept any gratuity for the performance of any duty in connection with his or her office.

Misconduct of officers of Court

67. (1) If an officer of the Court shall be charged with extortion, or with not duly paying any money received by him or her in the execution of his or her duty, or with any fraud, wrongful act, or neglect in the discharge of the duties of his or her office, any Judge of the High Court may—

- (a) inquire into the matter in a summary way, on affidavit, or such other evidence as shall appear reasonable to him or her, and for that purpose, summon and enforce the attendance of all necessary parties and witnesses in like manner as the attendance of witnesses may be enforced in any other proceedings; and
- (b) thereupon dismiss the charge, or order the officer to pay any monies or damages which, in the opinion of the Judge, the officer ought under the circumstances to pay; and also impose such fine, if any, as he or she may think fit, on the officer.

(2) The costs of every such inquiry shall be in the discretion of the Judge, and may be ordered to be paid by the officer or by the person laying the charge.

(3) Every order made under this section may be enforced as an order of the High Court.

(4) No proceeding taken, or order made under this section shall prevent the officer from being prosecuted criminally for any offence committed by him or her, or affect any right of action which any person shall have against the officer, or the power of the Governor to suspend or dismiss him or her.

PART IV**LEGAL PRACTITIONERS****Existing practitioners**

68. (1) Every person entitled, at the commencement of this Act, to practise in the Territory as a barrister or as a solicitor, may continue to practise as heretofore, and shall be a barrister or solicitor, as the case may be, of the Supreme Court.

(2) Every person holding office in the public service of the Virgin Islands under the provisions of section 95 of the Virgin Islands (Constitution) Order, shall, so long as he or she continues to hold such office, be *ex officio* a barrister of the Court, and shall be deemed to be enrolled as a barrister in accordance with the provisions of this Act.

Admission of legal practitioner

69. (1) A Judge of the High Court may, subject to the provisions of subsections (2) and (3), admit to practise as a legal practitioner of the Court—

- (a) any member of the English Bar;
- (b) any member of the Scottish Bar;
- (c) any member of the Northern Irish Bar; and

- (d) any person who has obtained a degree from a recognised University and has also obtained a Certificate of Legal Education from the Council of Legal Education of the West Indies,

and any person who shall have been admitted to practise as a solicitor or law agent by a Superior Court in England, Scotland or Northern Ireland: Except that, upon cause being shown, an application to be so admitted may be refused notwithstanding that the applicant has complied with the provisions of that subsection and subsections (2) and (3) and further, that no refusal by a Judge of any such application shall be final but, an application refused by a Judge shall, if the applicant so requires by notice in writing to the Registrar, be laid before and dealt with by the Court of Appeal.

(2) Every person applying to be admitted to practise as a legal practitioner under the provisions of this Act shall—

- (a) pay into the Treasury the sum of \$100 as an enrolment fee;
- (b) file in the office of the Registrar an affidavit of his or her identity and that he or she has paid the enrolment fee; and
- (c) deposit with the Registrar for inspection by the court—
 - (i) the receipt for the enrolment fee; and
 - (ii) his or her certificate of Call to the English, Scottish or Northern Irish Bar or his or her degree certificate from a recognised University and his or her Certificate of Legal Education from the Council of Legal Education of the West Indies and his or her certificate of admission as a solicitor in England or in Northern Ireland or as solicitor or law agent admitted to practise in Scotland.

(3) Every person applying to be admitted to practise as a legal practitioner by virtue of English, Scottish or Northern Irish qualification shall deposit with the Registrar for inspection by the court, in addition to the documents required to be deposited for inspection under subsection (2)(c) either one of the following documents—

- (a) a certificate issued by the Council of Legal Education, London that he or she has satisfactorily completed a practical training course provided by the said Council and approved by the Chief Justice for the purposes of this section; or
- (b) a certificate signed by his or her pupil master and countersigned on behalf of his or her Inn of Court that he or she has either before or after Call, or partly before and partly after Call read as a pupil for an aggregate period of not less than 6 months in the Chambers of one or more barristers of not less than 5 years standing practising in England or in Northern Ireland or Advocate of not less than 5 years standing practising in Scotland or in the Chambers of one or more barristers of not less than 10 years standing practising in the State.

(4) In a special case the Judge may exempt any such person from depositing or producing any of the certificates referred to in subsection (2)(c)(ii)

and in subsection (3), if otherwise satisfied that he or she has the qualifications required.

(5) No unqualified person shall act as a legal practitioner or as such sue out any suit or process or commence, carry on or defend any action, suit or other proceeding, in the name of any other person or in his or her own name, in any court of civil or criminal jurisdiction, in any cause or matter, civil or criminal, to be heard or determined before any court.

(6) If a person contravenes the provisions of this section, he or she shall—

- (a) be guilty of a misdemeanour and of contempt of the court in which the action, suit, cause, matter or proceeding in relation to which he or she so acts is brought or taken and may be punished accordingly;
- (b) be incapable of maintaining an action for any costs in respect of anything done by him or her in the course of so acting; and
- (c) in addition to any other penalty or forfeiture and any disability to which he or she may be subject, be liable for each such offence on summary conviction before a Magistrate, to a fine of \$200.

(7) Any person, not being enrolled as a legal practitioner, who wilfully pretends to be, or takes or uses any name, title, addition or description implying that he or she is qualified (or recognised by law as qualified) to act as a legal practitioner, shall be liable on summary conviction before a Magistrate to a fine of \$200 for each such offence.

(8) If any act is done by a body corporate or by a director, officer, or servant thereof, of such a nature or in such a manner as to be calculated to imply that the body corporate is qualified, or recognised by law as qualified, to act as a legal practitioner, the body corporate shall be liable on summary conviction before a Magistrate to a fine of \$400 for each such offence, and, in the case of an act done by a director, officer or servant of the corporation, he or she also shall be liable on summary conviction before a Magistrate to a fine of \$100 for each such offence.

(9) Nothing in this Part of this Act shall affect any enactment empowering an unqualified person to conduct, defend or otherwise act in relation to any legal proceedings.

(10) It is hereby declared that in subsections (3) and (4) of this section and in section 75 references to unqualified persons include references to bodies corporate.

Enrolment of legal practitioners

70. (1) Every person admitted as a legal practitioner shall cause his or her name to be enrolled in a book to be kept for the purpose by the Registrar and to be called the Court Roll, and, upon his or her name being so enrolled, shall be entitled to a certificate of enrolment under the seal of the High Court.

(2) Every person, whose name is so enrolled, shall be entitled to practise as a legal practitioner in every court in the Territory.

(3) No person, whose name is not so enrolled, shall be entitled to practise in any of the courts of the Territory.

Barristers practising as solicitors

71. Subject to the provisions of section 72, every person enrolled as a barrister shall be entitled to practise as a solicitor, and to sue for and receive his or her taxed costs as such, but if he or she practises as a solicitor, he or she shall be subject to all the liabilities which attach by law to a solicitor.

Queen's Counsel

72. (1) Except as otherwise provided in subsection (2), no barrister who has the rank of Queen's Counsel shall perform any of the functions which in England are performed by a solicitor and are not performed by a barrister; but a barrister who has the rank of Queen's Counsel shall not be precluded from continuing or engaging in partnership with another barrister by reason only that such last mentioned barrister performs any functions as aforesaid.

(2) Every person holding the office of Attorney General, may notwithstanding that he or she has the rank of Queen's Counsel, perform the functions mentioned in section 71 in relation to the duties of his or her office as Attorney General.

Solicitors and Commissioners for Oaths are officers of the court

73. (1) Every person practising as a legal practitioner and whose name shall be enrolled as aforesaid shall be deemed to be an officer of the Court.

(2) Every person who, under the provisions of any Act or Ordinance for the time being in force is, or shall be appointed a Commissioner to administer oaths in the Court, shall be deemed to be an officer of the Court.

Legal practitioners may be suspended or struck off roll

74. Any 2 Judges of the High Court may, for reasonable cause, suspend any legal practitioner from practising in the Territory during any specified period, and may order his or her name to be struck off the Court roll.

In any proceeding under this section a minute of the order of that Court shall be made to record its decision, and an appeal shall lie against such decision to the Court of Appeal.

Unauthorised persons drawing legal documents

75. (1) Any person, not being enrolled as a legal practitioner or otherwise lawfully authorised, who either directly or indirectly draws or prepares any instrument relating to real or personal property, or any legal proceedings shall, unless he or she proves that the act was not done for or in expectation of any fee, gain or reward, be liable on summary conviction before a Magistrate to a fine of \$200.

For the purposes of this subsection, the expression "instrument" does not include—

(a) a will or other testamentary instrument;

- (b) an agreement under hand only;
- (c) a letter or power of attorney; or
- (d) a transfer of stock containing no trust or limitation thereof.

(2) A person not being enrolled as a legal practitioner, or otherwise lawfully authorised, who either directly or indirectly draws or prepares an instrument of transfer or charge for the purposes of the Title by Registration Act, or makes an application or lodges a caveat or other instrument or document for registration under that Act shall, unless he or she proves that the act was not done for or in expectation of any fee, gain or reward, be liable on summary conviction before a Magistrate to a fine of \$240.

(3) The provisions of subsections (1) and (2) shall not extend to—

- (a) a duly certificated notary public;
- (b) a public officer drawing or preparing instruments in the course of his or her duty; or
- (c) a person employed merely to engross any instrument or proceeding.

(4) Any person not being enrolled as a legal practitioner or otherwise lawfully authorised, who either directly or as an agent of any other person whether a person qualified as above mentioned or not, takes instructions for or draws or prepares papers on which to found or oppose a grant of probate or of letters of administration shall unless he or she proves that the act was not done for or in expectation of any fee, gain or reward be liable on summary conviction before a Magistrate to a fine of \$200.

No legal practitioner to act as agent for unqualified person

76. (1) No legal practitioner shall wilfully, and knowingly—

- (a) act as an agent in any action, any matter in bankruptcy or in relation to any business which can only be transacted by a person with legal qualifications, for any unqualified person;
- (b) permit his or her name to be made use of in any such action, or matter upon the account, or for the profit, of any unqualified person;
- (c) send any process to any unqualified person; or
- (d) do any other act enabling any unqualified person to appear, act or practise in any respect as a legal practitioner in any such action or matter.

(2) A legal practitioner who acts in contravention of this section, or of section 77, may be suspended from practising in the Territory during any specified period, or his or her name may be struck off the Court roll by any 2 Judges of the High Court, under the authority of section 74.

(3) Where any 2 Judges of the High Court order the name of a legal practitioner to be struck off the roll in respect of an offence under this section, the unqualified person who was enabled by the conduct of the offender to act or

practise as a legal practitioner shall be guilty of an offence and liable on summary conviction before a Magistrate to imprisonment for one year.

No sharing of profit costs with person not enrolled as a legal practitioner

77. A legal practitioner shall not agree to share his or her profit costs in respect of contentious or non-contentious business with any person who is not enrolled as a legal practitioner, subject to the following exceptions—

- (a) an annuity may be paid out of profits to a retired partner, to the dependants or to the legal personal representative of a deceased partner;
- (b) a legal practitioner may be employed by a company or other employer who is not a legal practitioner on the basis of receiving a salary and accounting to the employer to the extent of his or her salary for any costs received from third parties in respect of contentious or non-contentious business transacted by the legal practitioner for this employer and any reasonable office expenses incurred by the employer in connection with that legal practitioner.

Law relating to solicitors, taxation and recovery of costs

78. Subject to modification by the rules of court, the law and practice relating to solicitors, and the taxation and recovery of costs in force in England shall extend to and be in force in the Territory and shall apply to all persons lawfully practising therein as solicitors of the Court.

PART V

WITNESSES

Disobedience of subpoena

79. If a person served with a subpoena to attend as a witness in proceeding before a Judge of the High Court sitting in Court or in Chambers or before the Court of Appeal refuses or neglects to attend pursuant to the subpoena, the Judge or court may punish the person in a summary way by fine not exceeding \$150, or by commitment to prison for a term not exceeding 6 months.

Provided that nothing contained in this section shall affect or abridge any right of any party to the proceeding to proceed against the person for the recovery of any special damage the party may have sustained by reason of the person's disobedience.

Witness expenses in criminal proceedings

80. (1) A Judge of the High Court may, in or in respect of any criminal proceeding before him or her, order allowances not exceeding those prescribed by rules of court to be paid to all persons examined or detained as witnesses for the Crown, whether examined before the Magistrate or not, and also to all persons examined or detained as witnesses for the defence, who have been

examined before the Magistrate, and who have been bound over to appear before the court at the trial.

Provided that the Judge may, if he or she shall think fit, order a similar allowance to be paid to any person examined at the trial as a witness for the defence, notwithstanding that such person was not examined before the Magistrate.

(2) If any person except a duly qualified medical practitioner giving professional evidence, whose allowance shall, under this section, be ordered to be paid, resides at a greater distance than one mile from the Court House at which the trial takes place, the Judge may order that the person be paid for and in respect of his or her travelling expenses, such further allowance as may be prescribed by rules of court.

(3) In the case of duly qualified medical practitioners, whose whole time is given to the public service, and who are therefore under the provisions of subsection (4) disqualified from receiving an allowance for attendance, the Judge may, notwithstanding, order the payment of an allowance for travelling expenses in accordance with this subsection.

(4) When any person called or detained as aforesaid as a witness either for the Crown or the defence is in receipt of a salary as a public officer, the person shall not, unless his or her whole time is not at the disposal of the Government, by reason of his or her enjoying private practice or otherwise, be entitled to be paid any allowance under this Act, for attendance as a witness, beyond the travelling expenses provided for by subsection (3).

Persons present at proceedings in court may be ordered to give evidence

81. A Judge may, in any proceeding pending before him or her, order any person present to give evidence therein, notwithstanding that no viaticum or other payment to which the person was entitled, shall have been paid or tendered to him or her.

PART VI

MISCELLANEOUS

Sittings of the Courts

82. (1) Subject to the provisions of this and the next following section, the High Court and the Court of Appeal for the purpose of exercising the jurisdiction and powers conferred on them respectively by this Act and any other law in force in the Territory may sit either in the Territory or in any of the States to which the Courts Order applies.

(2) Sittings of the High Court for the trial of civil and criminal causes originating in the Territory shall be held at such times as may be prescribed by rules of court and shall be held at Road Town in the Island of Tortola except in cases where the Chief Justice gives special directions that the Court shall sit at some other place.

(3) Sittings of the Court of Appeal shall be held at such times and at such place as the Chief Justice may by general or special directions appoint.

(4) Notice of the times appointed for the sittings of the High Court and of the Court of Appeal shall be published in the *Gazette*.

Interlocutory applications

83. (1) In the absence of a Judge or Master, any interlocutory or other application which may be made to a Judge in Chambers or to a Master may be reduced to writing and delivered, posted or sent by facsimile or other electronic means by the Registrar to a Judge or to a Master, together with such affidavits and other documents as are required by the Rules of Court.

(2) The written order of the Judge or Master shall be transmitted to the Registrar and shall be deemed to be the order of the Court.

(3) No such application shall be made unless the Registrar certifies that, to the best of his or her belief, all parties liable to be affected by the order sought and entitled to be heard against the same have had due notice thereof, and an opportunity of transmitting any counter affidavits or other documents in opposition thereto.

(Substituted by Act 15 of 2000)

Expenses in criminal proceedings

84. In every criminal proceeding, all expenses consequent on, or incidental to the transmission of process, the conveyance of prisoners and the trial, determination of or dealing with such proceedings, including all allowances ordered to be paid to witnesses under section 79, shall be paid out of monies provided by the Legislature.

Remission or reduction of fines

85. Any fine or penalty imposed by a Judge may, at any time before it has been paid or satisfied, be reduced or remitted by him or her.

Rules of court

86. (1) The Chief Justice and any other 2 Judges of the Supreme Court may by order provide that any rules of court made under section 17 of the Courts Order shall have effect as part of the law of the Territory subject to such exceptions, adaptations or modifications as may be specified in the order and any such order may include provisions for the amendment or revocation of any rule of court so having effect immediately before the prescribed date.

(2) All rules of court in force immediately before the commencement of this Act shall continue in force until revoked.

Saving of procedure

87. Save as is otherwise provided by this Act or by rules of court, all forms and methods of procedure which under and by virtue of any law, custom or rule whatsoever, were formerly in force in any of the Courts the jurisdiction of which is vested in the High Court or the Court of Appeal respectively, and which are

not inconsistent with this Act, or with rules of court, may continue to be used in the High Court and the Court of Appeal respectively in the like cases and for the like purposes as those in and for which they have been applicable in the former respective Courts.

Pending Proceedings

88. All proceedings pending before the date of commencement of this Act on appeal from any court of law to the High Court pursuant to the provisions of sections 5 and 6 of the Virgin Islands (Courts) Order may be continued and concluded after the commencement of this Act in the Court of Appeal in accordance with the provisions of this Act.
